

SENATE BILL 27

By Pody

AN ACT to amend Tennessee Code Annotated, Title 4 and
Title 58, Chapter 2, relative to emergency powers
of the governor.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 58-2-107(a)(2), is amended by
deleting the subdivision and substituting:

(2) Pursuant to the authority vested in the governor under subdivision (a)(1), the
governor may issue executive orders, proclamations, and rules and may amend or
rescind them. Such executive orders, proclamations, and rules have the force and effect
of law; provided, that such orders, proclamations, or rules do not contravene, suspend,
or conflict with a provision of the Constitution of Tennessee.

SECTION 2. Tennessee Code Annotated, Section 58-2-107(e)(1), is amended by
deleting the subdivision and substituting:

(1) Except for subsections (m) and (n), the limitations on issuing executive
orders, proclamations, and rules specified in subdivision (a)(2), and the duration of a
declared state of emergency specified in subdivision (b)(2), suspend any law, order, rule,
or regulation prescribing the procedures for conduct of state business or the orders or
rules or regulations of any state agency, if strict compliance with any such law, order,
rule, or regulation would in any way prevent, hinder, or delay necessary action in coping
with the emergency;

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.